

CHAPTER IV.

The Appearance.

Orders of 1850.

XX.
Appearance,
and proceed-
ings in default
of appearance.

The Subpœna having been duly served, the Defendant must within the limited time enter his appearance, as in the Subpœna directed, or the Plaintiff may appear for him, and in default of answer may proceed to a hearing of the cause, as if the statements in the Bill were admitted, or traversed, in the manner prescribed by the Orders presently following.

The time limited for appearance in ordinary cases is fourteen days, under the following Orders:—(The Italics show where the words differ from those of the English Order 29th).

Order XX.

If any defendant, not appearing to be an infant, or a person of weak or unsound mind, unable of himself to defend the suit, *shall*, when within the jurisdiction of the Court, *be* duly served with a subpœna to appear and answer a bill, and *shall* refuse or neglect to appear thereto within *fourteen* days after such service, the plaintiff may, after the expiration of such *fourteen* days, and within *four* weeks from the time of such service, apply to the *Registrar* to enter an appearance for such defendant; and, no appearance having been entered, the *Registrar* is to enter such appearance accordingly, upon being satisfied by affidavit that the Subpœna was duly served upon such defendant personally, or at his dwelling-house or usual place of abode; and, after the expiration of such *four* weeks, or after the time allowed to such defendant for appearing has expired, in any case in which the *Registrar*

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